

SUPERIOR COURT OF California, COUNTY OF SAN DIEGO

THE PEOPLE OF THE STATE OF CALIFORNIA,
Plaintiff,

vs.

Roe, Richard

Defendant(s)

Case No.: CD000000
D.A. No.: AAT000
Trial/Hearing Date: 12/12/2002

**SUBPOENA DUCES TECUM
(Criminal)**

(Records Only)

P.C. 1102,1327,1328,1330, 1331

Evid. C. 1560,1561

C.C.P. 1985-1997, 2015.5

(G.C. Sec. 7476 (a))

To Custodian /Employer :

Custodian of Records
Attn: Jane Doe
Yahoo!
701 First Avenue
Sunnyvale, CA 94089

Please contact legal assistant Jane Smith at (858) 555-1234 upon receipt of this subpoena.

YOU ARE COMMANDED, within 5 days after receipt of this subpoena, to deliver by mail or otherwise a true, durable and legible copy of the following records: **ANY AND ALL SUBSCRIBER INFORMATION, PROFILE INFORMATION, IP ADDRESS(ES) USED TO ACCESS ACCOUNT(S) WHEN CONNECTING WITH YAHOO!, AND ANY AND ALL NEW PASSWORD REQUESTS FOR THE FOLLOWING YAHOO! ACCOUNT ON JUNE 3, 2002: roe1234@YAHOO.COM** (or such described as are in your possession or control) to the Clerk of the Court or to the Court, together with the declaration set forth below. [Case assigned to Deputy Attorney General Jane Jones, telephone (858) 555-0000.]

PROCEDURE: The custodian shall complete and sign the declaration below. The copy of the records shall be separately enclosed in an inner envelope or other suitable container, and then sealed. The case name and number, the name of custodian, and the date for which the records are subpoenaed shall be clearly written on the outside of the inner envelope or container. This subpoena shall then be attached to the inner sealed envelope or container and both shall then be enclosed in an outer envelope or container, sealed and sent to: Clerk of the Superior Court, 330 West Broadway, San Diego, CA 92101, with the case name and number clearly written on the outer envelope.

DECLARATION OF CUSTODIAN: "I, (print your name) _____, declare I am a duly authorized custodian of the records described above and I have the authority to certify those records. In that capacity, I certify that the documents enclosed herewith are true copies of the records requested under this subpoena. The originals of these records were prepared in the ordinary course of business by or at the direction of personnel of (print name of your business) _____ at or near the time of the act, condition, or event recorded therein. I am familiar with such documents from my employment with the named business and certify that these business records are relied upon in the conduct of said business as accurate representations of the information contained therein. The records are specifically identified as: _____ . The records were prepared in the following manner: _____

I declare under penalty of perjury that the foregoing is true and correct and that this declaration is executed at (city) _____, California, on (date) _____, 200__."

(your signature)_____.

Disobedience of this subpoena may be punished by a fine, imprisonment, or both. A warrant may issue for your arrest if you fail to appear.

DATED: June 17, 2014

Clerk of the Court

By _____ Deputy Clerk

CERTIFICATE OF SERVICE

- ☐ On the date shown below I served the within subpoena on the above named custodian at _____ by delivering 2 copies personally.
- ☐ After due search and diligent inquiry I have been unable to locate the above named custodian.

I declare under penalty of perjury that the foregoing is true and correct and that this declaration is executed on

(Date): _____ at (Place): _____, California.

(Signature of Server)

WHEREFORE declarant prays that Subpoena Duces Tecum issue.

I declare under penalty of perjury that the foregoing is true and correct, and that this declaration is executed on June 17, 2014 at San Diego, California.

Jane Jones, Deputy Attorney General

DECLARATION FOR SUBPOENA DUCES TECUM

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN DIEGO
SAN DIEGO JUDICIAL DISTRICT
330 WEST BROADWAY, SAN DIEGO, CA 92101

THE PEOPLE OF THE STATE OF CALIFORNIA,
Plaintiff,

vs.

Roe, Richard

Defendant(s)

Case No.: CD000000

D.A. No.: AAT000

Trial/Hearing Date: 12/12/2002

DECLARATION FOR SUBPOENA DUCES TECUM

Deputy District Attorney John Brown declares that he/she is attorney of record for plaintiff in the above entitled action; that said cause has been duly set for hearing on 12/12/2002, in the Presiding Department of the above entitled court.

Declarant alleges that the Custodian of Records/Witness named has in his/her possession or under his/her control the documents, matters, or things described in the attached subpoena.

Declarant states that the above documents, matters, and things are relevant and material to the proper presentation of his/her case and that good cause exists for the production of the above-described documents, matters, or things for the following reasons:

Records are necessary to prove the elements of a violation of Penal Code Section 502(C) (4) by the above named defendant(s).

WHEREFORE declarant prays that Subpoena Duces Tecum issue.

I declare under penalty of perjury that the foregoing is true and correct, and that this declaration is executed on June 17, 2014 at San Diego, California.

Jane Jones, Deputy Attorney General

DECLARATION FOR SUBPOENA DUCES TECUM